

12	Amaya vs. Kim	TENTATIVE RULING: <u>Motion for Judgment on the Pleadings</u> Defendant Evelyn Kim moves for judgment on the pleadings as to Plaintiffs Declan Matthew Doherty and Olivia Marie Doherty. For the following reasons, the motion is DENIED as moot. Pursuant to Code of Civil Procedure section 438, subdivision (b)(1), a party may move for judgment on the pleadings. A defendant may move for a judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438, subd. (c)(1)(B).) The grounds for a motion for judgment on the pleadings “shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit.” (Code Civ. Proc., § 438, subd. (d); see, <i>Burnett v. Chimney Sweep</i> (2004) 123 Cal.App.4th 1057, 1063 [Subject to certain exceptions, extrinsic evidence should not be considered in a motion for judgment on the pleadings.].) Defendant contends that Plaintiffs Declan Matthew Doherty and Olivia Marie Doherty are minors but no guardian ad litem has been appointed to represent either of these Plaintiffs as required by California Code of Civil Procedure section 372. Thus, Defendant concludes that these Plaintiffs lack capacity to maintain this lawsuit and judgment on the pleadings should be entered as to these Plaintiffs. However, on May 14, 2026, the Court entered two Orders appointing Plaintiff Angie Marie Amaya as the guardian ad litem for Plaintiff Olivia Marie Doherty and Plaintiff Declan Matthew Doherty. (ROAs 96, 97.) Thus, the motion is moot. Moving Defendant shall give notice of this ruling.
13	Nakano vs. Binder	OFF CALENDAR
14	Spears vs. The Moore Law Group	OFF CALENDAR

15	Chen vs. Orange County Sheriff's Department	TENTATIVE RULING: <u>Petition for Writ of Mandate</u> Petitioner Fenglin Chen petitions for a writ of mandate compelling Respondent Orange County Sheriff-Coroner Department to disclose public records concerning a particular case under the California Public Records Act (“CPRA”). For the following reasons, the petition is DENIED. According to the Declaration accompanying the original Petition filed on March 28, 2025, Petitioner was arrested by Orange County Sheriff’s Department (OCSD) on August 4, 2022, and released on August 8, 2022. (ROA 5 at ¶ 2.) An incident report was generated and indexed as “DR 22-026128.” (Ibid.; see also Declaration of Michele Alvarez, Ex. A) Over the next few years, Petitioner “submitted multiple lawful records requests to OCSD ... under [the] CPRA, seeking confirmation of the current status of Case No. 22-026128, including whether it had been transferred, filed, rejected, or administratively closed.” (ROA 5 at ¶ 3.) Petitioner did not provide a copy of his record requests with his Petition. (ROAs 2, 5.) However, the Petition states that Petitioner was seeking the following records: 1. On-Scene Law Enforcement Records (Body Camera Footage) All audio and video footage recorded by body-worn cameras of law enforcement officers who arrived at the scene on August 4, 2022. If body-worn cameras were not activated or the footage is unavailable for any reason, please provide a written explanation. 2. Notifications to Mahinur Yahup and Bo Chen Confirmation of whether Or notified Mahinur Yahu and Bo Chen after Petitioner lost consciousness and was transported to Providence St. Joseph Hospital Orange Emergency Department. Please specify the time, method, and content of the notification. Any written or verbal responses or feedback provided by Mahinur Yahup and Bo Chen. 3. Health Management Records During Custody All communications between OCSD and Providence St. Joseph Hospital Orange regarding Petitioner’s condition during his unconscious state. A detailed account of the events leading to Petitioner’s unconsciousness, including accident reports, medical assessments, and treatment records. 4. Comprehensive Investigative Report 4.1 The initial investigate report, including further inquiry records regarding Mahinur Yahup and Bo Chen.
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4.2 Any analysis and conclusions drawn by law enforcement regarding discrepancies in the statements provided by Petitioner, Mahinur Yahup, and Bo Chen.

Petitioner then filed a First Amended Petition on June 9, 2025, which contains a significantly revised set of records requests:

1. Petitioner seeks only the following narrow, administrative information:

a. The current status of OCSD Case No. 22-026128 (closed / active / transferred);

b. If transferred, the date of transfer, the agency to which it was transferred, and any OCSD reference number.

2. Petitioner expressly does not seek body-worn camera footage, investigative reports, witness statements, or any other materials exempted by Government Code § 7923.600.

Before filing the Petition, Petitioner submitted a different request on January 29, 2024, seeking “to obtain the detailed narrative of entire case and all available information.” (Alvarez Dec., ¶ 4 and Ex. A.) On February 8, 2024, Respondent provided Petitioner with a factual report disclosing information relating to his arrest. (Alvarez Dec., ¶ 4 and Ex. A.) On December 26, 2024, Respondent responded to Petitioner’s additional records request and denied the request pursuant to Government Code section 7923.600, investigatory exemption. (Id. at ¶ 5 and Ex. B.)

Respondent received another request from Petitioner on January 31, 2025, requesting a variety of information, including the following: “1. Please provide a case status certification confirming the current status of case # 22-026128 in [OCSD’s] department’s database. 2. If the case is still marked as ‘open’ or ‘under investigation’ in [OCSD’s] system, please provide a written explanation detailing why the case has not been officially closed.” (Id. at ¶ 6, Ex. C.) Respondent responded on the same day with a denial letter as the records requested are investigatory in nature and exempt from disclosure pursuant to Gov. Code § 7923.600. (Ibid.)

The Petition seeks a writ of mandate pursuant to Code Civ. Proc. § 1085 (ROA 29 at p.2), which governs ordinary mandamus writ relief. (Code Civ. Proc., § 1085, subd. (a) (“A writ of mandate may be issued by any court to any inferior tribunal, corporation, board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station, or to compel the admission of a party to the use and enjoyment of a right or office to which the party is entitled, and from which the party is

unlawfully precluded by that inferior tribunal, corporation, board, or person”).

To obtain writ relief, a petitioner must demonstrate (1) no plain, speedy, and adequate alternative remedy exists; (2) a clear, present... ministerial duty on the part of the respondent; and (3) a correlative clear, present and beneficial right in the petitioner to the performance of that duty. (*In re C.F.* (2011) 198 Cal.App.4th 454, 465.) A ministerial duty is an obligation to perform a specific act in a manner prescribed by law whenever a given state of facts exists, without regard to any personal judgment as to the propriety of the act. (*California Association of Professional Scientists v. Department of Finance* (2011) 195 Cal.App.4th 1228, 1236.)

“The CPRA, enacted in 1968, grants access to public records held by state and local agencies. Modeled after the federal Freedom of Information Act ..., the CPRA was enacted for the purpose of increasing freedom of information by giving members of the public access to records in the possession of state and local agencies. Such access to information concerning the conduct of the people’s, the Legislature declared, is a fundamental and necessary right of every person in this state.” (*Iloh v. Regents of Univ. of California* (2023) 87 Cal.App.5th 513, 523 (*Iloh*) (cleaned up).)

“Consistent with that fundamental right of access to information, the CPRA dictates that every person has the right to inspect any public record, except those records expressly exempted from disclosure. (§ 7922.525, subd. (a).) The CPRA broadly defines public records to include any writing containing information relating to the conduct of the public’s business prepared, owned, used, or retained by any state or local agency. (§ 7920.530, subd. (a).) Our Constitution requires that these provisions furthering the people’s right of access to information be broadly construed. (*Iloh*, 87 Cal.App.5th at p. 523 (cleaned up).)

“Nevertheless, the act does not confer an absolute right of access. As part of the CPRA, the Legislature included a provision declaring it was mindful of the right of individuals to privacy. This express policy declaration bespeaks legislative concern for individual privacy as well as disclosure. [¶] To balance those competing goals of privacy and public access, the CPRA includes numerous exemptions that permit public agencies to refuse disclosure of certain public records. (*Iloh*, 87 Cal.App.5th at p. 523 [cleaned up].)

The CPRA authorizes any person seeking “to enforce that person's right under [the CPRA] to inspect or receive a copy of any public

record or class of public records” to bring an action for injunctive or declarative relief or a writ of mandate to obtain judicial review of an agency's decision not to disclose requested records. (Gov. Code § 7923.000.) If, after issuing an order to show cause, the court determines “the public official's decision to refuse disclosure is not justified” under the CPRA, it “shall order the public official to make the record public.” (Gov. Code §§ 7923.110, 7923.100.) Thus, the remedy available under the CPRA is ordinarily a determination “whether a particular record or class of records must be disclosed.” (*County of Santa Clara v. Superior Court* (2009) 171 Cal.App.4th 119, 127 [“The CPRA provides no judicial remedy ... for any purpose other than to determine whether a particular record or class of records must be disclosed.”].)

In response to a petition for writ of mandate under the CPRA, a respondent may assert as affirmative defenses: (1) a request was unclear and the agency provided adequate assistance to the requestor to identify records but was still unable to identify any records; (2) the withholding was justified under the Public Records Act; or (3) the agency undertook a reasonable search for records but was unable to locate the requested records. (See *Community Youth Athletic Center v. City of National City* (2013) 220 Cal.App.4th 1385, 1418.)

As a threshold matter, Petitioner has submitted a new request through his Petition different from those requests submitted prior to filing the Petition, and again through his Amended Petition, and thus cannot establish that Respondent has made a decision not to disclose the records requested in these new requests.

Aside from this issue, the only requests submitted in the Amended Petition are the following: “a. The current status of OCSD Case No. 22-026128 (closed / active / transferred); b. If transferred, the date of transfer, the agency to which it was transferred, and any OCSD reference number.” This request is not a document request but a request to answer certain questions.

The CPRA defines “public records” as “any writing containing information relating to the conduct of the public's business prepared, owned, used, or retained by any state or local agency regardless of physical form or characteristics” (Gov. Code §7920.530.) This definition makes clear that the Act applies only to writings that already exist and are in the possession of the agency. At any rate, Respondent has provided evidence that it has no records responsive to this request. (Alvarez Dec., ¶¶ 11-13.) Finally, Respondent has shown that all records related to Case No. 22-026128 that may be responsive are investigatory records and exempt from disclosure

		pursuant to Government Code section 7923.600(a). (Alvarez Dec., ¶ 14.) The Petition is denied. Respondent shall give notice of this ruling.
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